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5. GENERAL CONSIDERATION FOR ZONES AND DEVELOPMENT

5.1 EXEMPT DEVELOPMENT

Exempt development is considered to involve minor proposals that have minimal environmental impact. Exempt development will not require development consent. Exempt development is subject to established standards and criteria to ensure that it has minimal environmental impact.

Section 76(2) of the *Environmental Planning and Assessment Act* ("the Act") states that an environmental planning instrument may provide that development of a specified class or description that is of minimal environmental impact is exempt development.

Orange Local Environmental Plan 2000 ("the LEP") species exempt in Clause 20. Clause 20 references exempt development criteria in Schedule 1 of this Development Control Plan ("the DCP").

A development application or an application for a complying development certificate may need to be made for development that does not meet the exempt development criteria under the LEP or this DCP.

If development is undertaken without approval and if that development does not meet the exempt development criteria, then Council may require that an application be lodged. Council may also take action by giving orders or by instituting legal proceedings to rectify any breaches according to the Act.

5.2 COMPLYING DEVELOPMENT

The complying development category recognises that some development that is subject to established criteria does not require detailed assessment. The complying development category provides for "fast tracking" of standard or routine development.

A complying development certificate can be issued either by Council or by an accredited certifier within seven days of application where the development complies with established standards and criteria in all respects.

Section 76A(5) of the *Environmental Planning and Assessment Act 1979* states that an environmental planning instrument may provide that local development that can be addressed by predetermined development is complying development. Subsection 6 provides a number of restrictions on applying complying development.

Clause 22 of Orange Local Environmental Plan 2000 ("the LEP") provides for complying development and outlines the circumstances in which complying development may be used. The LEP also references the development criteria for complying development in Appendix 2 of this Development Control Plan ("the DCP").

WHERE COMPLYING DEVELOPMENT DOES NOT APPLY

Section 76A(6) provides that complying development does not apply to:

- State significant development;
- Designated development;
- Development that requires concurrence;
- Land that is critical habitat (with the meaning of the *Threatened Species Conservation Act 1995)*;
- Land affected by or within a wilderness area (within the meaning of the *Wilderness Act 1987*);
- An item of environmental heritage (either subject to a conservation order under the *Heritage Act 1977* or listed in Schedule 8 of Local Environmental Plan 2000 (as amended);
- Land identified as an environmentally-sensitive area.

Orange Local Environmental 2000 identifies the following land as environmentally sensitive:

- Land indicated by diagonal red hatching, being land that is in the vicinity of major industries or utility installations;
- Land within the Scenic Area adjacent to Orange Botanic Gardens;
- Land within the Water Supply Quality Protection Area in the vicinity of creeks and water storages within the City's water supply catchment;
- Within the Lucknow Village and adjacent areas affected by mining operations.

Because these areas define various potential environmental impacts, complying development is not considered appropriate.

STANDARD CONDITIONS

- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate other than for subdivision are listed in Schedule 3.1.
- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate for strata subdivision are listed in Schedule 3.6.
- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate for subdivision creating residential lots in Spring Hill Village are listed in Schedule 3.5.
- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate for subdivision of residential lots in the urban residential zone are listed in Schedule 3.4.
- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate for rural subdivision are listed in Schedule 3.3.
- Standard conditions that will be applied by Council or the accredited certifier to a complying development certificate for dual occupancies in residential zones, consulting rooms, industrial and warehouse buildings are listed in Schedules 3.1 and 3.2.

5.3 ADVERTISED AND NEIGHBOUR NOTIFIED DEVELOPMENT

Council's *Planning and Development: Community Participation Plan* (current edition) is to be referred to for guidance on "advertised" and "neighbour notified" development.

5.4 ANCILLARY DEVELOPMENT

Clause 25 of LEP 2000 outlines where development may be prohibited under Orange LEP 2000. Subclause 25(2) of LEP 2000 identifies uses that are considered not to be ancillary to a dwelling. The LEP otherwise does not outline ancillary use. This section is intended to assist in determining ancillary use issues.

Some development may comprise more than one use. In the event that a development comprises more than one specific purpose (ie, an industry, showroom and office), then consideration may be given to the development even where one purpose may normally be prohibited in the zone if that purpose is reasonably considered to be ancillary, dependent, incidental or subordinate to a permissible use.

For the purposes of this Plan, the following principles are applied in considering if a use may be ancillary development:

- The subordinate, dependent, incidental or ancillary purpose is on the same land as the dominant one;
- Building(s) erected and/or used for ancillary development are necessary for the dominant use to operate effectively;
- The area required for the subordinate, dependent, incidental or ancillary purposes is substantially less than the area used for the dominant use;
- The number of employees involved in the subordinate, dependent, incidental or ancillary use are less than the number engaged in the dominant use.

Where one or more of the above principles cannot be achieved, an applicant must be able to demonstrate to the satisfaction of Council that the use is subordinate, ancillary or incidental to or dependent on the dominant use and is not an independent use.

PO 5.4-1 PLANNING OUTCOMES FOR ANCILLARY DEVELOPMENT

1 Development comprising more than one purpose including a purpose that would normally be prohibited in that zone operates in a manner where any ancillary purpose is subordinate, dependent or incidental or ancillary to the primary purpose of the development according to the ancillary development principles.

RELATED INFORMATION – ANCILLARY DEVELOPMENT

1 Farrier, David, 1993 ***The Environmental Law Handbook: Planning and Land Use in New South Wales***, Second Edition (p:116). Redfern Legal Centre Publishing, Sydney

2 Grainger, Chris. 1993 "The Doctrine of Ancillary Use" in ***Environmental and Planning Law Journal***. Vol 10 pp:267-277. Law Book Company, Sydney

5.5 ZONE BOUNDARIES

Zones are used in LEP 2000 to broadly define areas that are considered appropriate for various forms of development subject to more detailed site-specific considerations.

Zones provide for a range of uses within an area while excluding others. As a consequence, some areas may have a number of different uses being undertaken that generate the character of the locality. This variety in character occurs particularly where different zones meet at a zone boundary, often referred to as "transitional areas". In specific cases, there may be justification to provide some development flexibility adjacent to a zone boundary provided that the planning principles underlying the zone are maintained.

This provision does not allow additional development in a water-supply catchment, since the water-catchment zone boundary is based on topographical limits for the purposes of restricting development that could potentially impact on water quality in the water-catchment area.

Formerly, LEP amendments were required to allow development on land that could otherwise only be carried out on land in the adjoining zone. In those cases, submissions were required to substantiate a change to the LEP. Similarly, a proposal to undertake development under clause 26 of LEP 2000 adjacent to a zone boundary must be substantiated.

The following considerations are required to substantiate development in accordance with clause 26 of LEP 2000:

- Description of the existing land use pattern
- Suitability of the land (services, character of adjoining development, etc) to provide for the proposed development
- Evaluation of alternative opportunities within the adjoining zone
- Review of the development potential for the site, taking into account site-specific opportunities and constraints for development and associated environmental impacts
- Conclusions on the potential impacts of the development on the character of the area and the extent to which the development is compatible with the character of the area

PO 5.5-1 PLANNING OUTCOMES FOR DEVELOPMENT AT ZONE BOUNDARIES

1 Applications for development under clause 26 of LEP 2000 demonstrate to the satisfaction of Council that the land is suitable for the proposed use and is compatible with the character and amenity of the area in accordance with this DCP.

2 The development complements the character of the area.

5.6 UNZONED LAND

Under LEP 2000, railway land, roads and some creeks have been left unzoned. Under clause 27, unzoned land may be used for a purpose permitted in the adjoining zone. Development for road and railway purposes undertaken by the relevant transport authorities may be carried out without consent on unzoned roads and railway land respectively.

Where an unzoned road or railway land forms a boundary between two zones, development permitted under clause 27 of LEP 2000 must take into account the character of surrounding land.

Development of unzoned land comprising a public road also requires the consent of the relevant Roads Authority under section 138 of the *Roads Act*.

Section 138 of the *Roads Act 1993* relates to:

a erecting a structure or carrying out a work in, on or over a public road; or

b digging up or disturbing the surface of a public road, or

c removing or interfering with a structure, work or tree on a public road, or

d pumping water into a public road from any land adjoining the road, or

e connecting a road (whether public or private) to a classified road.

Applications for development involving any of the matters listed in section 138 affecting a "classified road" (such as a main road or State Highway as indicated with a red line on the LEP map) will be referred to the Roads and Traffic Authority.

Where development involves works on a road that is the responsibility of the adjoining Shire Council (Cabonne or Blayney), the development will be **integrated development**.

The Council will consider all matters relating to section 138(a) to (e) of the *Roads Act* affecting local roads under Council's control.

PO 5.6-1 PLANNING OUTCOMES FOR UNZONED LAND

1 Development applications on unzoned land demonstrate that the development is consistent with the nearest adjoining zone or predominant development in the area permitted by an adjoining zone.

2 Applications for development on Main Roads meet the requirements of the Roads and Traffic Authority.

3 Applications affecting roads under another local roads authority (such as Cabonne or Blayney Councils) meet the requirements of the relevant council.

RELATED INFORMATION – UNZONED LAND
Roads Act 1993

5.7 SUBDIVISION

GENERAL

The *Orange City Development and Subdivision Code* (in Four Volumes), referred to below as "The Code", is deemed to form part of this Plan.

QUALITY ASSURANCE PROCEDURES FOR CONSTRUCTION CERTIFICATES

Quality assurance procedures for construction works that are required to be approved by Council under clause 28 of Orange LEP 2000 refer to the:

1 **Quality Manual** under section CQS-6 of Volume 4 of the Orange City Development and Subdivision Code ("The Code") and

2 the **Quality Plan** under section CQS-7 of Volume 4 of the Orange City Development and Subdivision Code,

For clause 28 to apply, the Principal Certifying Authority must be satisfied that all *job-specific requirements* and *quality-control* procedures have been implemented in accordance with section CQS of Volume 4 of The Code.

Works carried out in accordance with the above quality assurance procedures to the standards required in the *Orange City Development and Subdivision Code* must be completed, or security arrangements made with Council for the completion of works, prior to a Certificate of Compliance under the *Water Supplies Authorities Act* and a Construction Certificate under the Act being issued.

PO 5.7-1 PLANNING OUTCOMES FOR CERTIFYING SUBDIVISION

1 All subdivision works are designed and undertaken in accordance with Council's adopted standards as outlined in the *Orange City Development and Subdivision Code*.

NOTE **At the time of the adoption of this (draft) Plan, the Development and Subdivision Code was under review. For the purposes of this Plan, any reference to the Development and Subdivision Code relates to the Code as adopted by Council that applies at the time of issue of a construction certificate for either buildings or subdivision works.**

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